IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
APPELLATE DIVISION

ELECTRONICALLY
F I L E D
Superior Court of California, County of San Francisco
11/15/2024
Clerk of the Court
BY: DORA LOUIE
Deputy Clerk

THE PEOPLE OF THE STATE OF CALIFORNIA, Plaintiff and Respondent, **v.** **ANDREW ENRIQUEZ,** Defendant and Appellant.	App. No. 24-008800 Case No. 22014337

The Honorable Braden C. Woods, Judge

RESPONDENT'S BRIEF

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INTRODUCTION

Appellant challenges his judgement of conviction on two grounds. First, Appellant asserts that the trial court improperly overruled his trial counsel's objection, pursuant to Code of Civil Procedure 231.7,[1] to the prosecution's peremptory challenge of Juror No. 9. Appellant avers that the trial prosecutor improperly dismissed Juror No. 9 based on his sexual orientation and alleged distrust of law enforcement. (Appellant's Opening Brief ("AOB"), pp. 4-5.) This argument lacks merit.

However, Appellant's second challenge to his conviction is well-taken and meritorious. Appellant argues, and Respondent concedes, that he is entitled to a reversal of his convictions because his case proceeded to trial after his statutory last day, without an adequate finding of good cause. Appellant objected to and sought dismissal of this action under Penal Code section 1382 and filed a Memorandum of Points and Authorities indicating that he was entitled to dismissal. (Clerk's Transcript ("CT") 56-72, 87-103.) Nevertheless, the case proceeded to trial. Because the trial court should have granted the motion to dismiss as Appellant's case was continued past its statutory last day without good cause, and prejudice is established as the prosecution could not refile the case against Appellant, Respondent concedes Appellant is entitled to reversal of his convictions on appeal.

Despite this dispositive concession, Respondent will nonetheless address the fallacies of Appellant's challenge to his conviction based on section 231.7, *infra*.

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[1] All future statutory references will be to the California Code of Civil Procedure unless otherwise indicated.

STATEMENT OF THE CASE

Appellant was charged by misdemeanor complaint with driving under the influence of alcohol (Veh. Code, § 23152, subd. (a), Count 1), driving with a blood alcohol content greater than 0.08 percent (Veh. Code, § 23152, subd. (b), Count 2), and driving without a license (Veh. Code, § 12500, subd. (a), Count 3). (CT 6-7.) On June 14, 2023, Appellant asserted his right to a speedy trial. (CT 15.) The trial court set Appellant's statutory last day for trial as July 14, 2023. (CT 15.)

On Appellant's last day for trial, the court continued the trial to October 16, 2023. (CT 32.) The court entered a written order finding good cause to continue Appellant's trial beyond its statutory last day in light of the COVID-19 pandemic. (CT 27-31.) On October 16, 2023, the court again continued Appellant's trial to December 1, 2023, with a new statutory last day of December 11, 2023. (CT 33.) In so ruling, the court did not enter a new written order, but instead relied on its previous good cause finding. (CT 33.) The trial court continued Appellant's trial a third time on December 1, 2023, and set a new trial date of March 4, 2024. (CT 39.)

On February 26, 2024, Appellant filed a motion to dismiss pursuant to Penal Code section 1382, asserting that his speedy trial rights had been violated by the repeated delays outlined *supra*. (CT 56-72.) Respondent filed responsive briefing on February 28, 2024, in which Respondent conceded that Appellant was entitled to a dismissal under Penal Code section 1382. (CT 73-79.) On March 18, 2024, Appellant filed a renewed motion to dismiss on the same basis. (CT 87-103.)

On April 3, 2024, the trial court entered a written order denying Defendant's motion to dismiss under Penal Code section 1382. (CT 136-154.) Appellant's case was assigned to a trial courtroom with motions in limine set to be heard on April 3, 2024. (CT 104-135; 155-174.)

Voir dire commenced on April 4, 2024. (CT 180.) During questioning by the trial court, Juror No. 9 spoke about a negative familial relationship that he had with several police officer family members. (Augmented Reporter's Transcript ("Aug. RT") 86:15 – 27.) Specifically, the trial judge asked:

> [Do] any of you, family member, or close friend have any law enforcement training or experience?
> . . .
> The key questions: Is there anything about that training experience and/or relationship that lead you to believe that you cannot serve as a fair, impartial juror on this case? And can you give both sides a fair trial?

(Aug. RT 85:7 – 8, 14 – 17.)

Juror No. 9 raised his hand in response to the trial court's question. (Aug. RT 86:15 – 16.) Juror No. 9 informed the court that his father-in-law and two of his brothers-in-law work as police officers in the Boston area. (Aug. RT 86:16 – 19.) Juror No. 9 expanded: "I think my relationship with them is somewhat strained. My husband as well. I don't think it would affect my decision in this case." (RT 86:25 – 27.) Juror No. 9 added that he thought he could "have an open mind" about the credibility of a testifying police officer at trial. (Aug. RT 87:1 – 6.)

The prosecution exercised a peremptory challenge as to five prospective jurors, including Juror No. 9. (CT 180; Aug. RT 165:24 – 25.) Appellant voiced a timely objection to the trial prosecutor's peremptory challenge of Juror No. 9 pursuant to section 231.7. (Aug. RT 165:26.) A sidebar conference was held on the issue, after which the trial judge permitted the prosecution's peremptory challenge to stand and excused Juror No. 9. (Aug. RT 166:1 – 11.)

On the morning of April 5, 2024, the trial judge invited the parties to memorialize on the record the arguments made at sidebar as to Juror No. 9 the day prior. (Aug. RT 122:15 – 24.) Defense counsel expressed her

belief that the juror was excused based on his sexual orientation in violation of section 231.7. (Aug. RT 122:25 – 123:4.) The prosecutor responded that the objection was "meritless" and that the peremptory challenge was based on his impression that "Juror No. 9 said that he does not hold the police officer to the same standards, and that he would not find them credible whatsoever." (Aug. RT 123:9 – 13.) The prosecutor also noted that "there's other members in the jury who are gay." (Aug. RT 123:13 – 14.)

The trial court overruled Appellant's objection "after evaluating the reasons given to justify the peremptory challenge, [and] in light of the totality of the circumstances . . . ." (Aug. RT 123: 24 – 26.) In accordance with section 231.7, subdivision (d)(1), the court found that "there is not a substantial likelihood that an objective, reasonable person would view the sexual orientation of Juror No. 9 as a factor in the use of the peremptory challenge." (Aug. RT 123:26 – 124:1.) In so ruling, the trial court noted, ostensibly per section 237.1, subdivision (d)(3)(D), that:

> [T]he prosecution also used peremptory challenges on two other white males who were not gay for the same reasons—their bias towards law enforcement. The fact that they could not judge them on the same standards as other witnesses. And that was Juror No. 19 . . . a straight white male, and Juror No. 22 . . . a straight white male, [who] gave [the] same responses as [Juror No. 9] in this particular area and the prosecution dismissed them.

(Aug. RT 125:1 – 8.)

To the extent that the prosecutor's justification for the peremptory challenge implicated the presumptively invalid rationale of "distrust of or having a negative experience with law enforcement" in any way, the court also found that the prosecution had demonstrated "by clear and convincing evidence that the dismissal of [Juror No. 9] was unrelated to [Juror No. 9's] sexual orientation." (Code. Civ. Proc., § 231.7, subd. (e)(1); Aug. RT

125:13 – 15.) Per section 231.7, subdivision (f), the court specifically expressed, "it is it highly probable that the reasons provided by [the prosecutor] on the record are unrelated to any type of conscious or unconscious bias, and are instead specific to the juror and the juror's ability to be fair and impartial in this case." (Aug. RT 125:15 – 19; see, Code Civ. Proc., § 231.7, subd (f).)

Finally, on the issue of distrust of law enforcement, the trial court expanded that:

> [I]n terms of the gentleman's statement, [Juror No. 9], regarding law enforcement and credibility of law enforcement and being able to judge them by the same standard, he had issues regarding that. And his issues, frankly, went beyond just a, quote, distrust of law enforcement. Based upon his particular family situation that he shared a little bit of, his law enforcement family in Boston . . . and the fact that it appears, based upon his statements that his family—those particular family members who are in law enforcement—do not accept [Juror No. 9] for who he loves. The Court finds that the peremptory challenge was valid, and it had nothing to do with the gentleman's sexual orientation.

(Aug. RT 124:10 – 26.)

A jury was sworn on April 4, 2024. (CT 180, 184.) On April 10, 2024, the jury returned a verdict of guilty on all counts. (CT 266.) This appeal followed.

STATEMENT OF FACTS

The facts of the underlying incident are not relevant to the instant appeal, which is based solely on events that occurred during jury selection, described *supra*, and the conceded violation of Appellant's right to a speedy trial under Penal Code section 1382.

ARGUMENT

I. The Trial Court Correctly Denied Appellant's Objection to the Prosecution's Peremptory Challenge of Juror No. 9 with Factual Findings Supported by Substantial Evidence.

A. Legal Standard

Per section 231.7, subdivision (j), "[t]he denial of an objection made under this section shall be reviewed by the appellate court de novo, with the trial court's express factual findings reviewed for substantial evidence." (Code Civ. Proc., § 231.7, subd. (j).) In conducting its de novo review, "[t]he appellate court shall not impute to the trial court any findings . . . that the trial court did not expressly state on the record." (Code Civ. Proc., § 231.7, subd. (j).) Finally, "[t]he reviewing court shall consider only reasons actually given under subdivision (c)" by the prosecutor to explain the reasons the peremptory challenge at issue was exercised. (Code Civ. Proc., § 231.7, subd. (j).)

B. The Trial Prosecutor Expressed a Valid Rationale for Excusing Juror No. 9 Unindicative of Bias, and the Trial Court's Denial of Appellant's Objection Was Supported by Findings Based on Substantial Evidence.

At the outset, Respondent concedes that the record does not support the trial prosecutor's statement that, "Juror No. 9 said that he does not hold the police officer to the same standards, and that he would not find them credible whatsoever." (Aug. RT 123:9 – 13.) Juror No. 9 did not *expressly* make that claim. However, Juror No. 9's statements about an acrimonious relationship with his law enforcement family members provided a reasonable basis for the prosecutor to fear that, regardless of best intentions, Juror No. 9 *would* experience negative feelings when faced with the testimony of a police officer.

Moreover, the record provides substantial evidence to support the trial judge's conclusion that the prosecution's reason for striking Juror No. 9 had nothing to do with the juror's sexual orientation. In the view of the trial court, "[b]ased on [Juror No. 9's] family situation that he shared a little bit of, his law enforcement family in Boston . . . it appears, based on his statements that his family—those particular family members who are in law enforcement—do not accept him for who he loves." (Aug. RT 124:10 – 26.) That hurtful personal experience with family members sharing the same profession as several of the prosecution's witnesses served as substantial evidence for the trial court to conclude that the prosecutor's concerns about Juror No. 9 in terms of "credibility of law enforcement and being able to judge them by the same standard" were valid. (Aug. RT 124:14 – 15.) Therefore, the trial court's finding "that there is not a substantial likelihood that an objective, reasonable person would view the sexual orientation of Juror No. 9 as a factor in the use of the peremptory challenge" should not be disturbed. (Aug. RT 123:25 – 124:1.)

C. The Prosecutor's Stated Reason for Striking Juror No. 9 Was Not a Distrust of or Negative Experience with Law Enforcement Within the Meaning of Section 231.7, Subdivision (e)(1).

Certainly, "[a]llowing a party to use [a] presumptively invalid reason[] to overcome the presumption would render section 231.7, subdivision (e) meaningless." (*People v. Jaime* (2023) 91 Cal.App.5th 941, 947.) A presumptively invalid reason cannot be used to justify an otherwise erroneous strike. But, as the trial court recognized, the prosecutor's reason for striking Juror No. 9 was not about a distrust of law enforcement as contemplated by section 231.7, subdivision (e)(1). "[Juror No. 9's] issues, frankly, went beyond just a, quote, distrust of law enforcement." (Aug. RT 124:15 – 17.)

The record supports the trial judge's conclusion. Juror No. 9 did not, in fact, express a distrust of law enforcement or describe a negative experience with law enforcement or the criminal legal system. Rather, he described a "strained" relationship with family members who happen to be police officers. (See, Aug. RT 86:25 – 26.) This fraught relationship apparently developed in the context of intrafamilial dynamics, not based on any negative interaction Juror No. 9 had with his husband's father and brothers while they were acting in a professional capacity as officers of the law. In this way, the trial court rightly recognized that the experience of Juror No. 9 was "particular" to him—not indicative of a generalized distrust of law enforcement, an experience so prevalent amongst the population that Legislature specifically recognized the same in enacting section 231.7, subdivision (e)(1). (See, Aug. RT 124:17 – 18.)

In sum, having seen and heard Juror No. 9 provide responses to the questions asked of him, and considering the context of his statements and "the totality of the circumstances" as instructed by section 231.7, subdivision (d)(1), the trial court determined that there was not a "substantial likelihood" that prosecutor's peremptory challenge of Juror No. 9 was based on sexual orientation. (See, Aug. RT 25 – 26; Code Civ. Proc., § 231.7, subd. (d)(1).) One facet of the "totality of the circumstances" considered by the trial court was the fact that that "the prosecution also used peremptory challenges on two other white males who were not gay . . . ." (Aug. RT 125:1 – 2.) Those two jurors had given answers similar to those of Juror No. 9, in that their ability to judge a law enforcement officer's credibility by the same standard as that of any other witness was in question. (See, Aug. RT 125:2 – 8.) As explained below, the trial court was acting explicitly within its authority under section 231.7, subdivision (d)(3) in finding this circumstance to be a relevant consideration in overruling Appellant's objection.

Section 231.7, subdivision (d)(3) provides that, in determining whether there is a "substantial likelihood" that sexual orientation was a factor in the peremptory challenge at issue, the court may consider "[w]hether other prospective jurors, who are not members of the same cognizable group as the challenged prospective juror, provided similar, but not necessarily identical, answers but were not the subject of a peremptory challenge by [the party exercising the peremptory challenge at issue]." (Code Civ. Proc., § 231.7, subd. (d)(3)(D).) It logically follows that the converse—that members *not* of the same cognizable group as the challenged juror were *also* the subject of a peremptory challenge by the prosecutor on similar grounds—is a pertinent circumstance. And the court is not limited to the factors listed in section 231.7, subdivision (d)(3)(D) in determining whether the "substantial likelihood" threshold has been met. (Code. Civ. Proc., § 231.7, subd. (d)(3) ["In making its determination, the circumstances the court may consider include, but are not limited to, any of the following . . . ."].)

In sum, the trial court properly considered the totality of the circumstances in evaluating the reasons provided by the prosecutor for his dismissal of Juror No. 9.

II. Appellant Cannot Raise New Claims or Make New Arguments in the Reply Brief

Claims raised for the first time in a reply brief are waived. (*People v. Clayburg* (2012) 211 Cal.App.4th 86, 93.) Should Appellant raise any claims or argument for the first time in the reply brief or at the subsequent argument, this Court should deem them to be waived under *Clayburg*.

CONCLUSION

The trial court's conclusion that the prosecutor's peremptory challenge of Juror No. 9 was unrelated to sexual orientation—and the factual findings stated on the record in support of that conclusion—are all supported by substantial evidence. Appellant's appeal should be denied on that basis. However, Appellant is entitled to a reversal of his convictions because his case proceeded to trial after his statutory last day, without an adequate finding of good cause.

Dated: November 15, 2024

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

I certify that the attached RESPONDENT'S BRIEF uses a 13-point Times New Roman font and contains 2,771 words.

Dated: November 15, 2024

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DECLARATION OF SERVICE

I, Kathleen McBride, state:

That I am a citizen of the United States, over eighteen years of age, an employee of the City and County of San Francisco, and not a party to the within action; that my business address is 350 Rhode Island Street, North Building, Suite 400N, San Francisco, California 94103. I am familiar with the business practice at the San Francisco District Attorney's Office (SFDA) for collecting and processing electronic and physical correspondence. In accordance with that practice, correspondence placed in the internal mail collection system at the SFDA is deposited in the United States Postal Service with postage thereon fully prepaid that same day in the ordinary course of business. Correspondence that is submitted electronically is transmitted using the TrueFiling electronic system, FileAndServeXpress electronic system, or electronic mail. Participants who are registered with either TrueFiling or FileAndServeXpress will be served through electronic mail at the email addresses listed below. Participants who are not registered with either TrueFiling or FileAndServeXpress will receive hard copies through the mail via the United States Postal Service.

That on November 15, 2024, I electronically served the **RESPONDENT'S BRIEF** by transmitting a true copy of through TrueFiling, FileAndServeXpress, or through electronic mail.

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I declare under penalty of perjury that the foregoing is true and correct. Executed November 15, 2024, at San Francisco, California.

Kathleen McBride

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